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Title 14 —Aeronautics and Space

Chapter I —Federal Aviation Administration, Department of Transportation

Subchapter G —Air Carriers and Operators for Compensation or Hire: Certification and Operations

Part 139 Certification of Airports

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PART 139—CERTIFICATION OF AIRPORTS

Authority: 49 U.S.C. 106(f), 106(g), 40113, 44701–44706, 44709, 44719, 47175.

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Editorial Note: Nomenclature changes to part 139 appear at 69 FR 24069, May 3, 2004.

Subpart A—General

§ 139.1 Applicability.

- (a) This part prescribes rules governing the certification and operation of airports in any State of the United States, the District of Columbia, or any territory or possession of the United States serving any—
 - (1) Scheduled passenger-carrying operations of an air carrier operating aircraft configured for more than 9 passenger seats, as determined by the regulations under which the operation is conducted or the aircraft type certificate issued by a competent civil aviation authority; and
 - (2) Unscheduled passenger-carrying operations of an air carrier operating aircraft configured for at least 31 passenger seats, as determined by the regulations under which the operation is conducted or the aircraft type certificate issued by a competent civil aviation authority.
- (b) This part applies to those portions of a joint-use or shared-use airport that are within the authority of a person serving passenger-carrying operations defined in paragraphs (a)(1) and (a)(2) of this section.
- (c) This part does not apply to—
 - (1) Airports serving scheduled air carrier operations only by reason of being designated as an alternate airport;

- (2) Airports operated by the United States;
- (3) Airports located in the State of Alaska that only serve scheduled operations of small air carrier aircraft and do not serve scheduled or unscheduled operations of large air carrier aircraft;
- (4) Airports located in the State of Alaska during periods of time when not serving operations of large air carrier aircraft; or
- (5) Heliports.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004, as amended by Amdt. 139-27, 78 FR 3316, Jan. 16, 2013]

§ 139.3 Delegation of authority.

The authority of the Administrator to issue, deny, and revoke Airport Operating Certificates is delegated to the Associate Administrator for Airports, Director of Airport Safety and Standards, and Regional Airports Division Managers.

§ 139.5 Definitions.

The following are definitions of terms used in this part:

Accountable executive means an individual designated by the certificate holder to act on its behalf for the implementation and maintenance of the Airport Safety Management System. The accountable executive has control of the certificate holder's human and financial resources for operations conducted under an Airport Operating Certificate. The accountable executive has ultimate responsibility to the FAA, on behalf of the certificate holder, for the safety performance of operations conducted under the certificate holder's Airport Operating Certificate.

AFFF means aqueous film forming foam agent.

Air carrier aircraft means an aircraft that is being operated by an air carrier and is categorized as either a large air carrier aircraft if designed for at least 31 passenger seats or a small air carrier aircraft if designed for more than 9 passenger seats but less than 31 passenger seats, as determined by the aircraft type certificate issued by a competent civil aviation authority.

Air carrier operation means the takeoff or landing of an air carrier aircraft and includes the period of time from 15 minutes before until 15 minutes after the takeoff or landing.

Airport means an area of land or other hard surface, excluding water, that is used or intended to be used for the landing and takeoff of aircraft, including any buildings and facilities.

Airport Operating Certificate means a certificate, issued under this part, for operation of a Class I, II, III, or IV airport.

Airport Safety Management System (SMS) means an integrated collection of processes and procedures that ensures a formalized and proactive approach to system safety through risk management.

Average daily departures means the average number of scheduled departures per day of air carrier aircraft computed on the basis of the busiest 3 consecutive calendar months of the immediately preceding 12 consecutive calendar months. However, if the average daily departures are expected to increase, then "average daily departures" may be determined by planned rather than current activity, in a manner authorized by the Administrator.

Certificate holder means the holder of an Airport Operating Certificate issued under this part.

Class I airport means an airport certificated to serve scheduled operations of large air carrier aircraft that can also serve unscheduled passenger operations of large air carrier aircraft and/or scheduled operations of small air carrier aircraft.

Class II airport means an airport certificated to serve scheduled operations of small air carrier aircraft and the unscheduled passenger operations of large air carrier aircraft. A Class II airport cannot serve scheduled large air carrier aircraft.

Class III airport means an airport certificated to serve scheduled operations of small air carrier aircraft. A Class III airport cannot serve scheduled or unscheduled large air carrier aircraft.

Class IV airport means an airport certificated to serve unscheduled passenger operations of large air carrier aircraft. A Class IV airport cannot serve scheduled large or small air carrier aircraft.

Clean agent means an electrically nonconducting volatile or gaseous fire extinguishing agent that does not leave a residue upon evaporation and has been shown to provide extinguishing action equivalent to halon 1211 under test protocols of FAA Technical Report DOT/FAA/AR-95/87.

Hazard means a condition that could foreseeably cause or contribute to:

- (1) injury, illness, death, damage to or loss of system, equipment, or property, or
- (2) an aircraft accident as defined in 49 CFR 830.2.

Heliport means an airport, or an area of an airport, used or intended to be used for the landing and takeoff of helicopters.

Index means the type of aircraft rescue and firefighting equipment and quantity of fire extinguishing agent that the certificate holder must provide in accordance with § 139.315.

Joint-use airport means an airport owned by the Department of Defense, at which both military and civilian aircraft make shared use of the airfield.

Movement area means the runways, taxiways, and other areas of an airport that are used for taxiing, takeoff, and landing of aircraft, exclusive of loading ramps and aircraft parking areas.

Non-movement area means the area, other than that described as the movement area, used for the loading, unloading, parking, and movement of aircraft on the airside of the airport (including ramps, apron areas, and on-airport fuel farms).

Regional Airports Division Manager means the airports division manager for the FAA region in which the airport is located.

Risk means the composite of predicted severity and likelihood of the potential effect of a hazard.

Risk analysis means the process whereby a hazard is characterized for its likelihood and the severity of its effect or harm. Risk analysis can be either a quantitative or qualitative analysis; however, the inability to quantify or the lack of historical data on a particular hazard does not preclude the need for analysis.

Risk mitigation means any action taken to reduce the risk of a hazard's effect.

Safety area means a defined area comprised of either a runway or taxiway and the surrounding surfaces that is prepared or suitable for reducing the risk of damage to aircraft in the event of an undershoot, overshoot, or excursion from a runway or the unintentional departure from a taxiway.

Safety assurance means processes within the SMS that function systematically to ensure the performance and effectiveness of risk controls or mitigations and that the organization meets or exceeds its safety objectives through the collection, analysis, and assessment of information.

Safety policy means the certificate holder's documented commitment to safety, which defines its safety objectives and the accountabilities and responsibilities of its employees in regard to safety.

Safety promotion means a combination of training and communication of safety information to support the implementation and operation of a SMS in an organization.

Safety risk management means a process within the SMS composed of describing the system, identifying the hazards, and analyzing, assessing, and controlling or mitigating the risk.

Scheduled operation means any common carriage passenger-carrying operation for compensation or hire conducted by an air carrier for which the air carrier or its representatives offers in advance the departure location, departure time, and arrival location. It does not include any operation that is conducted as a supplemental operation under 14 CFR part 121 or public charter operations under 14 CFR part 380.

Shared-use airport means a U.S. Government-owned airport that is co-located with an airport specified under § 139.1(a) and at which portions of the movement areas and safety areas are shared by both parties.

Unscheduled operation means any common carriage passenger-carrying operation for compensation or hire, using aircraft designed for at least 31 passenger seats, conducted by an air carrier for which the departure time, departure location, and arrival location are specifically negotiated with the customer or the customer's representative. It includes any passenger-carrying supplemental operation conducted under 14 CFR part 121 and any passenger-carrying public charter operation conducted under 14 CFR part 380.

Wildlife hazard means a potential for a damaging aircraft collision with wildlife on or near an airport. As used in this part, “wildlife” includes feral animals and domestic animals out of the control of their owners.

Note: Special Statutory Requirement To Operate to or From a Part 139 Airport. Each air carrier that provides—in an aircraft designed for more than 9 passenger seats—regularly scheduled charter air transportation for which the public is provided in advance a schedule containing the departure location, departure time, and arrival location of the flight must operate to and from an airport certificated under part 139 of this chapter in accordance with 49 U.S.C. 41104(b). That statutory provision contains stand-alone requirements for such air carriers and special exceptions for operations in Alaska and outside the United States. Certain operations by air carriers that conduct public charter operations under 14 CFR part 380 are covered by the statutory requirements to operate to and from part 139 airports. See 49 U.S.C. 41104(b).

[Doc. No. FAA–2000–7479, 69 FR 6424, Feb. 10, 2004, as amended by Amdt. 139–27, 78 FR 3316, Jan. 16, 2013; Docket No. FAA–2010–0997, 88 FR 11671, Feb. 23, 2023]

§ 139.7 Methods and procedures for compliance.

Certificate holders must comply with requirements prescribed by subparts C and D of this part in a manner authorized by the Administrator. FAA Advisory Circulars contain methods and procedures for compliance with this part that are acceptable to the Administrator.

Subpart B—Certification

§ 139.101 General requirements.

- (a) Except as otherwise authorized by the Administrator, no person may operate an airport specified under § 139.1 of this part without an Airport Operating Certificate or in violation of that certificate, the applicable provisions, or the approved Airport Certification Manual.
- (b) Each certificate holder shall adopt and comply with an Airport Certification Manual as required under § 139.203.

[Docket No. FAA–2000–7479, 69 FR 6424, Feb. 10, 2004, as amended by Docket No. FAA–2010–0997, 88 FR 11672, Feb. 23, 2023]

§ 139.103 Application for certificate.

Each applicant for an Airport Operating Certificate must—

- (a) Prepare and submit an application, in a form and in the manner prescribed by the Administrator, to the Regional Airports Division Manager.
- (b) Submit with the application, two copies of an Airport Certification Manual, and a Safety Management System Manual (where applicable), prepared in accordance with subparts C and E of this part.

[Docket No. FAA–2000–7479, 69 FR 6424, Feb. 10, 2004, as amended by Docket No. FAA–2010–0997, 88 FR 11672, Feb. 23, 2023]

§ 139.105 Inspection authority.

Each applicant for, or holder of, an Airport Operating Certificate must allow the Administrator to make any inspections, including unannounced inspections, or tests to determine compliance with 49 U.S.C. 44706 and the requirements of this part.

§ 139.107 Issuance of certificate.

An applicant for an Airport Operating Certificate is entitled to a certificate if—

- (a) The applicant provides written documentation that air carrier service will begin on a date certain.
- (b) The applicant meets the provisions of § 139.103.
- (c) The Administrator, after investigation, finds the applicant is properly and adequately equipped and able to provide a safe airport operating environment in accordance with—
 - (1) Any limitation that the Administrator finds necessary to ensure safety in air transportation.
 - (2) The requirements of the Airport Certification Manual, as specified under § 139.203.
 - (3) Any other provisions of this part that the Administrator finds necessary to ensure safety in air transportation.
- (d) The Administrator approves the Airport Certification Manual.

§ 139.109 Duration of certificate.

An Airport Operating Certificate issued under this part is effective until the certificate holder surrenders it or the certificate is suspended or revoked by the Administrator.

§ 139.111 Exemptions.

- (a) An applicant or a certificate holder may petition the Administrator under 14 CFR part 11, General Rulemaking Procedures, of this chapter for an exemption from any requirement of this part.
- (b) Under 49 U.S.C. 44706(c), the Administrator may exempt an applicant or a certificate holder that enplanes annually less than one-quarter of 1 percent of the total number of passengers enplaned at all air carrier airports from all, or part, of the aircraft rescue and firefighting equipment requirements of this part on the grounds that compliance with those requirements is, or would be, unreasonably costly, burdensome, or impractical.
 - (1) Each petition filed under this paragraph must—
 - (i) Be submitted in writing at least 120 days before the proposed effective date of the exemption;
 - (ii) Set forth the text of §§ 139.317 or 139.319 from which the exemption is sought;
 - (iii) Explain the interest of the certificate holder in the action requested, including the nature and extent of relief sought; and
 - (iv) Contain information, views, or arguments that demonstrate that the requirements of §§ 139.317 or 139.319 would be unreasonably costly, burdensome, or impractical.
 - (2) Information, views, or arguments provided under paragraph (b)(1) of this section shall include the following information pertaining to the airport for which the Airport Operating Certificate is held:
 - (i) An itemized cost to comply with the requirement from which the exemption is sought;
 - (ii) Current staffing levels;
 - (iii) The current annual financial report, such as a single audit report or FAA Form 5100–127, Operating and Financial Summary;
 - (iv) Annual passenger enplanement data for the previous 12 calendar months;
 - (v) The type and frequency of air carrier operations served;
 - (vi) A history of air carrier service;
 - (vii) Anticipated changes to air carrier service;
- (c) Each petition filed under this section must be submitted in duplicate to the—
 - (1) Regional Airports Division Manager and
 - (2) Federal Docket Management System, as specified under 14 CFR part 11.

[Doc. No. FAA–2000–7479, 69 FR 6424, Feb. 10, 2004; 72 FR 68475, Dec. 5, 2007]

§ 139.113 Deviations.

In emergency conditions requiring immediate action for the protection of life or property, the certificate holder may deviate from any requirement of subpart D of this part, or the Airport Certification Manual, to the extent required to meet that emergency. Each certificate holder who deviates from a requirement under this section must, within 14 days after the emergency, notify the Regional Airports Division Manager of the nature, extent, and duration of the deviation. When requested by the Regional Airports Division Manager, the certificate holder must provide this notification in writing.

§ 139.115 Falsification, reproduction, or alteration of applications, certificates, reports, or records.

- (a) No person shall make or cause to be made:
 - (1) Any fraudulent or intentionally false statement on any application for a certificate or approval under this part.
 - (2) Any fraudulent or intentionally false entry in any record or report that is required to be made, kept, or used to show compliance with any requirement under this part.
 - (3) Any reproduction, for a fraudulent purpose, of any certificate or approval issued under this part.
 - (4) Any alteration, for a fraudulent purpose, of any certificate or approval issued under this part.
- (b) The commission by any owner, operator, or other person acting on behalf of a certificate holder of an act prohibited under paragraph (a) of this section is a basis for suspending or revoking any certificate or approval issued under this part and held by that certificate holder and any other certificate issued under this title and held by the person committing the act.

[Doc. No. FAA-2010-0247, 78 FR 3316, Jan. 16, 2013]

Subpart C—Airport Certification Manual

§ 139.201 General requirements.

- (a) No person may operate an airport subject to this part unless that person adopts and complies with an Airport Certification Manual, as required under this part, that—
 - (1) Has been approved by the Administrator;
 - (2) Contains only those items authorized by the Administrator;
 - (3) Is in printed form and signed by the certificate holder acknowledging the certificate holder's responsibility to operate the airport in compliance with the Airport Certification Manual approved by the Administrator; and
 - (4) Is in a form that is easy to revise and organized in a manner helpful to the preparation, review, and approval processes, including a revision log. In addition, each page or attachment must include the date of the Administrator's initial approval or approval of the latest revision.
- (b) Each holder of an Airport Operating Certificate must—
 - (1) Keep its Airport Certification Manual current at all times;

- (2) Maintain at least one complete and current copy of its approved Airport Certification Manual on the airport, which will be available for inspection by the Administrator; and
- (3) Furnish the applicable portions of the approved Airport Certification Manual to airport personnel responsible for its implementation.
- (c) Each certificate holder must ensure that the Regional Airports Division Manager is provided a complete copy of its most current approved Airport Certification Manual, as specified under paragraph (b)(2) of this section, including any amendments approved under § 139.205.
- (d) FAA Advisory Circulars contain methods and procedures for the development of Airport Certification Manuals that are acceptable to the Administrator.

§ 139.203 Contents of Airport Certification Manual.

- (a) Except as otherwise authorized by the Administrator, each certificate holder must include in the Airport Certification Manual a description of operating procedures, facilities and equipment, responsibility assignments, and any other information needed by personnel concerned with operating the airport in order to comply with applicable provisions of subpart D of this part and paragraph (b) of this section.
- (b) Except as otherwise authorized by the Administrator, the certificate holder must include in the Airport Certification Manual the following elements, as appropriate for its class:

Required Airport Certification Manual Elements

Manual elements	Airport certificate class			
	Class I	Class II	Class III	Class IV
1. Lines of succession of airport operational responsibility	X	X	X	X
2. Each current exemption issued to the airport from the requirements of this part	X	X	X	X
3. Any limitations imposed by the Administrator	X	X	X	X
4. A grid map or other means of identifying locations and terrain features on and around the airport that are significant to emergency operations	X	X	X	X
5. The location of each obstruction required to be lighted or marked within the airport's area of authority	X	X	X	X
6. A description of each movement area available for air carriers and its safety areas, and each road described in § 139.319(k) that serves it	X	X	X	X
7. Procedures for avoidance of interruption or failure during construction work of utilities serving facilities or NAVAIDS that support air carrier operations	X	X	X	
8. A description of the system for maintaining records, as required under § 139.301	X	X	X	X
9. A description of personnel training, as required under § 139.303	X	X	X	X
10. Procedures for maintaining the paved areas, as required under § 139.305	X	X	X	X
11. Procedures for maintaining the unpaved areas, as required under § 139.307	X	X	X	X

Manual elements	Airport certificate class			
	Class I	Class II	Class III	Class IV
12. Procedures for maintaining the safety areas, as required under § 139.309	X	X	X	X
13. A plan showing the runway and taxiway identification system, including the location and inscription of signs, runway markings, and holding position markings, as required under § 139.311	X	X	X	X
14. A description of, and procedures for maintaining, the marking, signs, and lighting systems, as required under § 139.311	X	X	X	X
15. A snow and ice control plan, as required under § 139.313	X	X	X	
16. A description of the facilities, equipment, personnel, and procedures for meeting the aircraft rescue and firefighting requirements, in accordance with §§ 139.315, 139.317 and 139.319	X	X	X	X
17. A description of any approved exemption to aircraft rescue and firefighting requirements, as authorized under § 139.111	X	X	X	X
18. Procedures for protecting persons and property during the storing, dispensing, and handling of fuel and other hazardous substances and materials, as required under § 139.321	X	X	X	X
19. A description of, and procedures for maintaining, the traffic and wind direction indicators, as required under § 139.323	X	X	X	X
20. An emergency plan as required under § 139.325	X	X	X	X
21. Procedures for conducting the self-inspection program, as required under § 139.327	X	X	X	X
22. Procedures for controlling pedestrians and ground vehicles in movement areas and safety areas, as required under § 139.329	X	X	X	X
23. Procedures for obstruction removal, marking, or lighting, as required under § 139.331	X	X	X	X
24. Procedures for protection of NAVAIDS, as required under § 139.333	X	X	X	
25. A description of public protection, as required under § 139.335	X	X	X	
26. Procedures for wildlife hazard management, as required under § 139.337	X	X	X	
27. Procedures for airport condition reporting, as required under § 139.339	X	X	X	X
28. Procedures for identifying, marking, and lighting construction and other unserviceable areas, as required under § 139.341	X	X	X	
29. Policies and procedures for the development of, implementation of, maintenance of, and adherence to, the Airport's Safety Management System, as required under subpart E of this part. Section 139.401(1) prescribes which certificate holders are subject to this requirement.	X	X	X	X
30. Any other item that the Administrator finds is necessary to ensure safety in air transportation	X	X	X	X

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004; Amdt. 139-26, 69 FR 31522, June 4, 2004, as amended by Amdt. 139-27, 78 FR 3316, Jan. 16, 2013; Docket No. FAA-2010-0997, 88 FR 11672, Feb. 23, 2023]

§ 139.205 Amendment of Airport Certification Manual.

- (a) Under § 139.3, the Regional Airports Division Manager may amend any Airport Certification Manual approved under this part, either—
 - (1) Upon application by the certificate holder or
 - (2) On the Regional Airports Division Manager's own initiative, if the Regional Airports Division Manager determines that safety in air transportation requires the amendment.
- (b) A certificate holder must submit in writing a proposed amendment to its Airport Certification Manual to the Regional Airports Division Manager at least 30 days before the proposed effective date of the amendment, unless a shorter filing period is allowed by the Regional Airports Division Manager.
- (c) At any time within 30 days after receiving a notice of refusal to approve the application for amendment, the certificate holder may petition the Associate Administrator for Airports to reconsider the refusal to amend.
- (d) In the case of amendments initiated by the FAA, the Regional Airports Division Manager notifies the certificate holder of the proposed amendment, in writing, fixing a reasonable period (but not less than 7 days) within which the certificate holder may submit written information, views, and arguments on the amendment. After considering all relevant material presented, the Regional Airports Division Manager notifies the certificate holder within 30 days of any amendment adopted or rescinds the notice. The amendment becomes effective not less than 30 days after the certificate holder receives notice of it, except that, prior to the effective date, the certificate holder may petition the Associate Administrator for Airports to reconsider the amendment, in which case its effective date is stayed pending a decision by the Associate Administrator for Airports.
- (e) Notwithstanding the provisions of paragraph (d) of this section, if the Regional Airports Division Manager finds there is an emergency requiring immediate action with respect to safety in air transportation, the Regional Airports Division Manager may issue an amendment, effective without stay on the date the certificate holder receives notice of it. In such a case, the Regional Airports Division Manager incorporates the finding of the emergency and a brief statement of the reasons for the finding in the notice of the amendment. Within 30 days after the issuance of such an emergency amendment, the certificate holder may petition the Associate Administrator for Airports to reconsider either the finding of an emergency, the amendment itself, or both. This petition does not automatically stay the effectiveness of the emergency amendment.

Subpart D—Operations

§ 139.301 Records.

In a manner authorized by the Administrator, each certificate holder must—

- (a) Furnish upon request by the Administrator all records required to be maintained under this part.
- (b) Maintain records required under this part as follows:
 - (1) **Personnel training.** Twenty-four consecutive calendar months for personnel training records and orientation materials, as required under §§ 139.303, 139.327, and 139.402(d).
 - (2) **Emergency personnel training.** Twenty-four consecutive calendar months for aircraft rescue and firefighting and emergency medical service personnel training records, as required under § 139.319.

- (3) **Airport fueling agent inspection.** Twelve consecutive calendar months for records of inspection of airport fueling agents, as required under § 139.321.
 - (4) **Fueling personnel training.** Twelve consecutive calendar months for training records of fueling personnel, as required under § 139.321.
 - (5) **Self-inspection.** Twelve consecutive calendar months for self-inspection records, as required under § 139.327.
 - (6) **Movement areas and safety areas training.** Twenty-four consecutive calendar months for records of training given to pedestrians and ground vehicle operators with access to movement areas and safety areas, as required under § 139.329.
 - (7) **Accident and incident.** Twelve consecutive calendar months for each accident or incident in movement areas and safety areas involving an air carrier aircraft and/or ground vehicle, as required under § 139.329.
 - (8) **Airport condition.** Twelve consecutive calendar months for records of airport condition information dissemination, as required under § 139.339.
 - (9) **Safety risk management documentation.** The longer of thirty-six consecutive calendar months after the risk analysis of identified hazards under § 139.402(b)(2) has been completed, or twelve consecutive calendar months after mitigations required under § 139.402(b)(2)(v) have been completed.
 - (10) **Safety communications.** Twelve consecutive calendar months for safety communications, as required under § 139.402(d).
- (c) Make and maintain any additional records required by the Administrator, this part, and the Airport Certification Manual.

[Docket No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004, as amended by Docket No. FAA-2010-0997, 88 FR 11672, Feb. 23, 2023]

§ 139.303 Personnel.

In a manner authorized by the Administrator, each certificate holder must—

- (a) Provide sufficient and qualified personnel to comply with the requirements of its Airport Certification Manual and the requirements of this part.
- (b) Equip personnel with sufficient resources needed to comply with the requirements of this part.
- (c) Train all persons who access movement areas and safety areas and perform duties in compliance with the requirements of the Airport Certification Manual and the requirements of this part. This training must be completed prior to the initial performance of such duties and at least once every 12 consecutive calendar months. The curriculum for initial and recurrent training must include at least the following areas:
 - (1) Airport familiarization, including airport marking, lighting, and signs system.
 - (2) Procedures for access to, and operation in, movement areas and safety areas, as specified under § 139.329.

- (3) Airport communications, including radio communication between the air traffic control tower and personnel, use of the common traffic advisory frequency if there is no air traffic control tower or the tower is not in operation, and procedures for reporting unsafe airport conditions.
 - (4) Duties required under the Airport Certification Manual and the requirements of this part.
 - (5) Any additional subject areas required under §§ 139.319, 139.321, 139.327, 139.329, 139.337, and 139.339, as appropriate.
- (d) Make a record of all training completed after June 9, 2004 by each individual in compliance with this section that includes, at a minimum, a description and date of training received. Such records must be maintained for 24 consecutive calendar months after completion of training.
- (e) As appropriate, comply with the following training requirements of this part:
- (1) § 139.319, Aircraft rescue and firefighting: Operational requirements;
 - (2) § 139.321, Handling and storage of hazardous substances and materials;
 - (3) § 139.327, Self-inspection program;
 - (4) § 139.329, Pedestrians and Ground Vehicles;
 - (5) § 139.337, Wildlife hazard management;
 - (6) § 139.339, Airport condition reporting; and
 - (7) § 139.402, Components of airport safety management system.
- (f) Use an independent organization, or designee, to comply with the requirements of its Airport Certification Manual and the requirements of this part only if—
- (1) Such an arrangement is authorized by the Administrator;
 - (2) A description of responsibilities and duties that will be assumed by an independent organization or designee is specified in the Airport Certification Manual; and
 - (3) The independent organization or designee prepares records required under this part in sufficient detail to assure the certificate holder and the Administrator of adequate compliance with the Airport Certification Manual and the requirements of this part.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004; Amdt. 139-26, 69 FR 31522, June 4, 2004, as amended by Amdt. 139-27, 78 FR 3316, Jan. 16, 2013; Docket No. FAA-2010-0997, 88 FR 11672, Feb. 23, 2023]

§ 139.305 Paved areas.

- (a) In a manner authorized by the Administrator, each certificate holder must maintain, and promptly repair the pavement of, each runway, taxiway, loading ramp, and parking area on the airport that is available for air carrier use as follows:
- (1) The pavement edges must not exceed 3 inches difference in elevation between abutting pavement sections and between pavement and abutting areas.

- (2) The pavement must have no hole exceeding 3 inches in depth nor any hole the slope of which from any point in the hole to the nearest point at the lip of the hole is 45 degrees or greater, as measured from the pavement surface plane, unless, in either case, the entire area of the hole can be covered by a 5-inch diameter circle.
- (3) The pavement must be free of cracks and surface variations that could impair directional control of air carrier aircraft, including any pavement crack or surface deterioration that produces loose aggregate or other contaminants.
- (4) Except as provided in paragraph (b) of this section, mud, dirt, sand, loose aggregate, debris, foreign objects, rubber deposits, and other contaminants must be removed promptly and as completely as practicable.
- (5) Except as provided in paragraph (b) of this section, any chemical solvent that is used to clean any pavement area must be removed as soon as possible, consistent with the instructions of the manufacturer of the solvent.
- (6) The pavement must be sufficiently drained and free of depressions to prevent ponding that obscures markings or impairs safe aircraft operations.
- (b) Paragraphs (a)(4) and (a)(5) of this section do not apply to snow and ice accumulations and their control, including the associated use of materials, such as sand and deicing solutions.
- (c) FAA Advisory Circulars contain methods and procedures for the maintenance and configuration of paved areas that are acceptable to the Administrator.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004; Amdt. 139-26, 69 FR 31522, June 4, 2004]

§ 139.307 Unpaved areas.

- (a) In a manner authorized by the Administrator, each certificate holder must maintain and promptly repair the surface of each gravel, turf, or other unpaved runway, taxiway, or loading ramp and parking area on the airport that is available for air carrier use as follows:
 - (1) No slope from the edge of the full-strength surfaces downward to the existing terrain must be steeper than 2:1.
 - (2) The full-strength surfaces must have adequate crown or grade to assure sufficient drainage to prevent ponding.
 - (3) The full-strength surfaces must be adequately compacted and sufficiently stable to prevent rutting by aircraft or the loosening or build-up of surface material, which could impair directional control of aircraft or drainage.
 - (4) The full-strength surfaces must have no holes or depressions that exceed 3 inches in depth and are of a breadth capable of impairing directional control or causing damage to an aircraft.
 - (5) Debris and foreign objects must be promptly removed from the surface.
- (b) FAA Advisory Circulars contain methods and procedures for the maintenance and configuration of unpaved areas that are acceptable to the Administrator.

§ 139.309 Safety areas.

- (a) In a manner authorized by the Administrator, each certificate holder must provide and maintain, for each runway and taxiway that is available for air carrier use, a safety area of at least the dimensions that—
 - (1) Existed on December 31, 1987, if the runway or taxiway had a safety area on December 31, 1987, and if no reconstruction or significant expansion of the runway or taxiway was begun on or after January 1, 1988; or
 - (2) Are authorized by the Administrator at the time the construction, reconstruction, or expansion began if construction, reconstruction, or significant expansion of the runway or taxiway began on or after January 1, 1988.
- (b) Each certificate holder must maintain its safety areas as follows:
 - (1) Each safety area must be cleared and graded and have no potentially hazardous ruts, humps, depressions, or other surface variations.
 - (2) Each safety area must be drained by grading or storm sewers to prevent water accumulation.
 - (3) Each safety area must be capable under dry conditions of supporting snow removal and aircraft rescue and firefighting equipment and of supporting the occasional passage of aircraft without causing major damage to the aircraft.
 - (4) No objects may be located in any safety area, except for objects that need to be located in a safety area because of their function. These objects must be constructed, to the extent practical, on frangibly mounted structures of the lowest practical height, with the frangible point no higher than 3 inches above grade.
- (c) FAA Advisory Circulars contain methods and procedures for the configuration and maintenance of safety areas acceptable to the Administrator.

§ 139.311 Marking, signs, and lighting.

- (a) **Marking.** Each certificate holder must provide and maintain marking systems for air carrier operations on the airport that are authorized by the Administrator and consist of at least the following:
 - (1) Runway markings meeting the specifications for takeoff and landing minimums for each runway.
 - (2) A taxiway centerline.
 - (3) Taxiway edge markings, as appropriate.
 - (4) Holding position markings.
 - (5) Instrument landing system (ILS) critical area markings.
- (b) **Signs.**
 - (1) Each certificate holder must provide and maintain sign systems for air carrier operations on the airport that are authorized by the Administrator and consist of at least the following:
 - (i) Signs identifying taxiing routes on the movement area.
 - (ii) Holding position signs.
 - (iii) Instrument landing system (ILS) critical area signs.

- (2) Unless otherwise authorized by the Administrator, the signs required by paragraph (b)(1) of this section must be internally illuminated at each Class I, II, and IV airport.
- (3) Unless otherwise authorized by the Administrator, the signs required by paragraphs (b)(1)(ii) and (b)(1)(iii) of this section must be internally illuminated at each Class III airport.
- (c) **Lighting.** Each certificate holder must provide and maintain lighting systems for air carrier operations when the airport is open at night, during conditions below visual flight rules (VFR) minimums, or in Alaska, during periods in which a prominent unlighted object cannot be seen from a distance of 3 statute miles or the sun is more than six degrees below the horizon. These lighting systems must be authorized by the Administrator and consist of at least the following:
 - (1) Runway lighting that meets the specifications for takeoff and landing minimums, as authorized by the Administrator, for each runway.
 - (2) One of the following taxiway lighting systems:
 - (i) Centerline lights.
 - (ii) Centerline reflectors.
 - (iii) Edge lights.
 - (iv) Edge reflectors.
 - (3) An airport beacon.
 - (4) Approach lighting that meets the specifications for takeoff and landing minimums, as authorized by the Administrator, for each runway, unless provided and/or maintained by an entity other than the certificate holder.
 - (5) Obstruction marking and lighting, as appropriate, on each object within its authority that has been determined by the FAA to be an obstruction.
- (d) **Maintenance.** Each certificate holder must properly maintain each marking, sign, or lighting system installed and operated on the airport. As used in this section, to “properly maintain” includes cleaning, replacing, or repairing any faded, missing, or nonfunctional item; keeping each item unobscured and clearly visible; and ensuring that each item provides an accurate reference to the user.
- (e) **Lighting interference.** Each certificate holder must ensure that all lighting on the airport, including that for aprons, vehicle parking areas, roadways, fuel storage areas, and buildings, is adequately adjusted or shielded to prevent interference with air traffic control and aircraft operations.
- (f) **Standards.** FAA Advisory Circulars contain methods and procedures for the equipment, material, installation, and maintenance of marking, sign, and lighting systems listed in this section that are acceptable to the Administrator.
- (g) **Implementation.** The sign systems required under paragraph (b)(3) of this section must be implemented by each holder of a Class III Airport Operating Certificate not later than 36 consecutive calendar months after June 9, 2004.

§ 139.313 Snow and ice control.

- (a) As determined by the Administrator, each certificate holder whose airport is located where snow and icing conditions occur must prepare, maintain, and carry out a snow and ice control plan in a manner authorized by the Administrator.

- (b) The snow and ice control plan required by this section must include, at a minimum, instructions and procedures for—
 - (1) Prompt removal or control, as completely as practical, of snow, ice, and slush on each movement area;
 - (2) Positioning snow off the movement area surfaces so all air carrier aircraft propellers, engine pods, rotors, and wing tips will clear any snowdrift and snowbank as the aircraft's landing gear traverses any portion of the movement area;
 - (3) Selection and application of authorized materials for snow and ice control to ensure that they adhere to snow and ice sufficiently to minimize engine ingestion;
 - (4) Timely commencement of snow and ice control operations; and
 - (5) Prompt notification, in accordance with § 139.339, of all air carriers using the airport when any portion of the movement area normally available to them is less than satisfactorily cleared for safe operation by their aircraft.
- (c) FAA Advisory Circulars contain methods and procedures for snow and ice control equipment, materials, and removal that are acceptable to the Administrator.

§ 139.315 Aircraft rescue and firefighting: Index determination.

- (a) An index is required by paragraph (c) of this section for each certificate holder. The Index is determined by a combination of—
 - (1) The length of air carrier aircraft and
 - (2) Average daily departures of air carrier aircraft.
- (b) For the purpose of Index determination, air carrier aircraft lengths are grouped as follows:
 - (1) Index A includes aircraft less than 90 feet in length.
 - (2) Index B includes aircraft at least 90 feet but less than 126 feet in length.
 - (3) Index C includes aircraft at least 126 feet but less than 159 feet in length.
 - (4) Index D includes aircraft at least 159 feet but less than 200 feet in length.
 - (5) Index E includes aircraft at least 200 feet in length.
- (c) Except as provided in § 139.319(c), if there are five or more average daily departures of air carrier aircraft in a single Index group serving that airport, the longest aircraft with an average of five or more daily departures determines the Index required for the airport. When there are fewer than five average daily departures of the longest air carrier aircraft serving the airport, the Index required for the airport will be the next lower Index group than the Index group prescribed for the longest aircraft.
- (d) The minimum designated index shall be Index A.
- (e) A holder of a Class III Airport Operating Certificate may comply with this section by providing a level of safety comparable to Index A that is approved by the Administrator. Such alternate compliance must be described in the ACM and must include:
 - (1) Pre-arranged firefighting and emergency medical response procedures, including agreements with responding services.

- (2) Means for alerting firefighting and emergency medical response personnel.
- (3) Type of rescue and firefighting equipment to be provided.
- (4) Training of responding firefighting and emergency medical personnel on airport familiarization and communications.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004; Amdt. 139-26, 69 FR 31522, June 4, 2004]

§ 139.317 Aircraft rescue and firefighting: Equipment and agents.

Unless otherwise authorized by the Administrator, the following rescue and firefighting equipment and agents are the minimum required for the Indexes referred to in § 139.315:

- (a) **Index A.** One vehicle carrying at least—
 - (1) 500 pounds of sodium-based dry chemical, halon 1211, or clean agent; or
 - (2) 450 pounds of potassium-based dry chemical and water with a commensurate quantity of AFFF to total 100 gallons for simultaneous dry chemical and AFFF application.
- (b) **Index B.** Either of the following:
 - (1) One vehicle carrying at least 500 pounds of sodium-based dry chemical, halon 1211, or clean agent and 1,500 gallons of water and the commensurate quantity of AFFF for foam production.
 - (2) Two vehicles—
 - (i) One vehicle carrying the extinguishing agents as specified in paragraphs (a)(1) or (a)(2) of this section; and
 - (ii) One vehicle carrying an amount of water and the commensurate quantity of AFFF so the total quantity of water for foam production carried by both vehicles is at least 1,500 gallons.
- (c) **Index C.** Either of the following:
 - (1) Three vehicles—
 - (i) One vehicle carrying the extinguishing agents as specified in paragraph (a)(1) or (a)(2) of this section; and
 - (ii) Two vehicles carrying an amount of water and the commensurate quantity of AFFF so the total quantity of water for foam production carried by all three vehicles is at least 3,000 gallons.
 - (2) Two vehicles—
 - (i) One vehicle carrying the extinguishing agents as specified in paragraph (b)(1) of this section; and
 - (ii) One vehicle carrying water and the commensurate quantity of AFFF so the total quantity of water for foam production carried by both vehicles is at least 3,000 gallons.
- (d) **Index D.** Three vehicles—
 - (1) One vehicle carrying the extinguishing agents as specified in paragraphs (a)(1) or (a)(2) of this section; and

- (2) Two vehicles carrying an amount of water and the commensurate quantity of AFFF so the total quantity of water for foam production carried by all three vehicles is at least 4,000 gallons.

(e) **Index E.** Three vehicles—

- (1) One vehicle carrying the extinguishing agents as specified in paragraphs (a)(1) or (a)(2) of this section; and
- (2) Two vehicles carrying an amount of water and the commensurate quantity of AFFF so the total quantity of water for foam production carried by all three vehicles is at least 6,000 gallons.

(f) **Foam discharge capacity.** Each aircraft rescue and firefighting vehicle used to comply with Index B, C, D, or E requirements with a capacity of at least 500 gallons of water for foam production must be equipped with a turret. Vehicle turret discharge capacity must be as follows:

- (1) Each vehicle with a minimum-rated vehicle water tank capacity of at least 500 gallons, but less than 2,000 gallons, must have a turret discharge rate of at least 500 gallons per minute, but not more than 1,000 gallons per minute.
- (2) Each vehicle with a minimum-rated vehicle water tank capacity of at least 2,000 gallons must have a turret discharge rate of at least 600 gallons per minute, but not more than 1,200 gallons per minute.

(g) **Agent discharge capacity.** Each aircraft rescue and firefighting vehicle that is required to carry dry chemical, halon 1211, or clean agent for compliance with the Index requirements of this section must meet one of the following minimum discharge rates for the equipment installed:

- (1) Dry chemical, halon 1211, or clean agent through a hand line—5 pounds per second.
- (2) Dry chemical, halon 1211, or clean agent through a turret—16 pounds per second.

(h) **Extinguishing agent substitutions.** Other extinguishing agent substitutions authorized by the Administrator may be made in amounts that provide equivalent firefighting capability.

(i) **AFFF quantity requirements.** In addition to the quantity of water required, each vehicle required to carry AFFF must carry AFFF in an appropriate amount to mix with twice the water required to be carried by the vehicle.

(j) **Methods and procedures.** FAA Advisory Circulars contain methods and procedures for ARFF equipment and extinguishing agents that are acceptable to the Administrator.

(k) **Implementation.** Each holder of a Class II, III, or IV Airport Operating Certificate must implement the requirements of this section no later than 36 consecutive calendar months after June 9, 2004.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004; Amdt. 139-26, 69 FR 31523, June 4, 2004]

§ 139.319 Aircraft rescue and firefighting: Operational requirements.

(a) **Rescue and firefighting capability.** Except as provided in paragraph (c) of this section, each certificate holder must provide on the airport, during air carrier operations at the airport, at least the rescue and firefighting capability specified for the Index required by § 139.317 in a manner authorized by the Administrator.

(b) **Increase in Index.** Except as provided in paragraph (c) of this section, if an increase in the average daily departures or the length of air carrier aircraft results in an increase in the Index required by paragraph (a) of this section, the certificate holder must comply with the increased requirements.

- (c) **Reduction in rescue and firefighting.** During air carrier operations with only aircraft shorter than the Index aircraft group required by paragraph (a) of this section, the certificate holder may reduce the rescue and firefighting to a lower level corresponding to the Index group of the longest air carrier aircraft being operated.
- (d) **Procedures for reduction in capability.** Any reduction in the rescue and firefighting capability from the Index required by paragraph (a) of this section, in accordance with paragraph (c) of this section, must be subject to the following conditions:
 - (1) Procedures for, and the persons having the authority to implement, the reductions must be included in the Airport Certification Manual.
 - (2) A system and procedures for recall of the full aircraft rescue and firefighting capability must be included in the Airport Certification Manual.
 - (3) The reductions may not be implemented unless notification to air carriers is provided in the Airport/Facility Directory or Notices to Airmen (NOTAM), as appropriate, and by direct notification of local air carriers.
- (e) **Vehicle communications.** Each vehicle required under § 139.317 must be equipped with two-way voice radio communications that provide for contact with at least—
 - (1) All other required emergency vehicles;
 - (2) The air traffic control tower;
 - (3) The common traffic advisory frequency when an air traffic control tower is not in operation or there is no air traffic control tower, and
 - (4) Fire stations, as specified in the airport emergency plan.
- (f) **Vehicle marking and lighting.** Each vehicle required under § 139.317 must—
 - (1) Have a flashing or rotating beacon and
 - (2) Be painted or marked in colors to enhance contrast with the background environment and optimize daytime and nighttime visibility and identification.
- (g) **Vehicle readiness.** Each vehicle required under § 139.317 must be maintained as follows:
 - (1) The vehicle and its systems must be maintained so as to be operationally capable of performing the functions required by this subpart during all air carrier operations.
 - (2) If the airport is located in a geographical area subject to prolonged temperatures below 33 degrees Fahrenheit, the vehicles must be provided with cover or other means to ensure equipment operation and discharge under freezing conditions.
 - (3) Any required vehicle that becomes inoperative to the extent that it cannot perform as required by paragraph (g)(1) of this section must be replaced immediately with equipment having at least equal capabilities. If replacement equipment is not available immediately, the certificate holder must so notify the Regional Airports Division Manager and each air carrier using the airport in accordance with § 139.339. If the required Index level of capability is not restored within 48 hours, the airport operator, unless otherwise authorized by the Administrator, must limit air carrier operations on the airport to those compatible with the Index corresponding to the remaining operative rescue and firefighting equipment.

(h) **Response requirements.**

- (1) With the aircraft rescue and firefighting equipment required under this part and the number of trained personnel that will assure an effective operation, each certificate holder must—
 - (i) Respond to each emergency during periods of air carrier operations; and
 - (ii) When requested by the Administrator, demonstrate compliance with the response requirements specified in this section.
- (2) The response required by paragraph (h)(1)(ii) of this section must achieve the following performance criteria:
 - (i) Within 3 minutes from the time of the alarm, at least one required aircraft rescue and firefighting vehicle must reach the midpoint of the farthest runway serving air carrier aircraft from its assigned post or reach any other specified point of comparable distance on the movement area that is available to air carriers, and begin application of extinguishing agent.
 - (ii) Within 4 minutes from the time of alarm, all other required vehicles must reach the point specified in paragraph (h)(2)(i) of this section from their assigned posts and begin application of an extinguishing agent.

(i) **Personnel.** Each certificate holder must ensure the following:

- (1) All rescue and firefighting personnel are equipped in a manner authorized by the Administrator with protective clothing and equipment needed to perform their duties.
- (2) All rescue and firefighting personnel are properly trained to perform their duties in a manner authorized by the Administrator. Such personnel must be trained prior to initial performance of rescue and firefighting duties and receive recurrent instruction every 12 consecutive calendar months. The curriculum for initial and recurrent training must include at least the following areas:
 - (i) Airport familiarization, including airport signs, marking, and lighting.
 - (ii) Aircraft familiarization.
 - (iii) Rescue and firefighting personnel safety.
 - (iv) Emergency communications systems on the airport, including fire alarms.
 - (v) Use of the fire hoses, nozzles, turrets, and other appliances required for compliance with this part.
 - (vi) Application of the types of extinguishing agents required for compliance with this part.
 - (vii) Emergency aircraft evacuation assistance.
 - (viii) Firefighting operations.
 - (ix) Adapting and using structural rescue and firefighting equipment for aircraft rescue and firefighting.
 - (x) Aircraft cargo hazards, including hazardous materials/dangerous goods incidents.
 - (xi) Familiarization with firefighters' duties under the airport emergency plan.
- (3) All rescue and firefighting personnel must participate in at least one live-fire drill prior to initial performance of rescue and firefighting duties and every 12 consecutive calendar months thereafter.

- (4) At least one individual, who has been trained and is current in basic emergency medical services, is available during air carrier operations. This individual must be trained prior to initial performance of emergency medical services. Training must be at a minimum 40 hours in length and cover the following topics:
 - (i) Bleeding.
 - (ii) Cardiopulmonary resuscitation.
 - (iii) Shock.
 - (iv) Primary patient survey.
 - (v) Injuries to the skull, spine, chest, and extremities.
 - (vi) Internal injuries.
 - (vii) Moving patients.
 - (viii) Burns.
 - (ix) Triage.
- (5) A record is maintained of all training given to each individual under this section for 24 consecutive calendar months after completion of training. Such records must include, at a minimum, a description and date of training received.
- (6) Sufficient rescue and firefighting personnel are available during all air carrier operations to operate the vehicles, meet the response times, and meet the minimum agent discharge rates required by this part.
- (7) Procedures and equipment are established and maintained for alerting rescue and firefighting personnel by siren, alarm, or other means authorized by the Administrator to any existing or impending emergency requiring their assistance.
- (j) **Hazardous materials guidance.** Each aircraft rescue and firefighting vehicle responding to an emergency on the airport must be equipped with, or have available through a direct communications link, the "North American Emergency Response Guidebook" published by the U.S. Department of Transportation or similar response guidance to hazardous materials/dangerous goods incidents. Information on obtaining the "North American Emergency Response Guidebook" is available from the Regional Airports Division Manager.
- (k) **Emergency access roads.** Each certificate holder must ensure that roads designated for use as emergency access roads for aircraft rescue and firefighting vehicles are maintained in a condition that will support those vehicles during all-weather conditions.
- (l) **Methods and procedures.** FAA Advisory Circulars contain methods and procedures for aircraft rescue and firefighting and emergency medical equipment and training that are acceptable to the Administrator.
- (m) **Implementation.** Each holder of a Class II, III, or IV Airport Operating Certificate must implement the requirements of this section no later than 36 consecutive calendar months after June 9, 2004.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004; Amdt. 139-26, 69 FR 31523, June 4, 2004]

§ 139.321 Handling and storing of hazardous substances and materials.

- (a) Each certificate holder who acts as a cargo handling agent must establish and maintain procedures for the protection of persons and property on the airport during the handling and storing of any material regulated by the Hazardous Materials Regulations (49 CFR 171 through 180) that is, or is intended to be, transported by air. These procedures must provide for at least the following:
 - (1) Designated personnel to receive and handle hazardous substances and materials.
 - (2) Assurance from the shipper that the cargo can be handled safely, including any special handling procedures required for safety.
 - (3) Special areas for storage of hazardous materials while on the airport.
- (b) Each certificate holder must establish and maintain standards authorized by the Administrator for protecting against fire and explosions in storing, dispensing, and otherwise handling fuel (other than articles and materials that are, or are intended to be, aircraft cargo) on the airport. These standards must cover facilities, procedures, and personnel training and must address at least the following:
 - (1) Bonding.
 - (2) Public protection.
 - (3) Control of access to storage areas.
 - (4) Fire safety in fuel farm and storage areas.
 - (5) Fire safety in mobile fuelers, fueling pits, and fueling cabinets.
 - (6) Training of fueling personnel in fire safety in accordance with paragraph (e) of this section. Such training at Class III airports must be completed within 12 consecutive calendar months after June 9, 2004.
 - (7) The fire code of the public body having jurisdiction over the airport.
- (c) Each certificate holder must, as a fueling agent, comply with, and require all other fueling agents operating on the airport to comply with, the standards established under paragraph (b) of this section and must perform reasonable surveillance of all fueling activities on the airport with respect to those standards.
- (d) Each certificate holder must inspect the physical facilities of each airport tenant fueling agent at least once every 3 consecutive months for compliance with paragraph (b) of this section and maintain a record of that inspection for at least 12 consecutive calendar months.
- (e) The training required in paragraph (b)(6) of this section must include at least the following:
 - (1) At least one supervisor with each fueling agent must have completed an aviation fuel training course in fire safety that is authorized by the Administrator. Such an individual must be trained prior to initial performance of duties, or enrolled in an authorized aviation fuel training course that will be completed within 90 days of initiating duties, and receive recurrent instruction at least every 24 consecutive calendar months.
 - (2) All other employees who fuel aircraft, accept fuel shipments, or otherwise handle fuel must receive at least initial on-the-job training and recurrent instruction every 24 consecutive calendar months in fire safety from the supervisor trained in accordance with paragraph (e)(1) of this section.

- (f) Each certificate holder must obtain a written confirmation once every 12 consecutive calendar months from each airport tenant fueling agent that the training required by paragraph (e) of this section has been accomplished. This written confirmation must be maintained for 12 consecutive calendar months.
- (g) Unless otherwise authorized by the Administrator, each certificate holder must require each tenant fueling agent to take immediate corrective action whenever the certificate holder becomes aware of noncompliance with a standard required by paragraph (b) of this section. The certificate holder must notify the appropriate FAA Regional Airports Division Manager immediately when noncompliance is discovered and corrective action cannot be accomplished within a reasonable period of time.
- (h) FAA Advisory Circulars contain methods and procedures for the handling and storage of hazardous substances and materials that are acceptable to the Administrator.

§ 139.323 Traffic and wind direction indicators.

In a manner authorized by the Administrator, each certificate holder must provide and maintain the following on its airport:

- (a) A wind cone that visually provides surface wind direction information to pilots. For each runway available for air carrier use, a supplemental wind cone must be installed at the end of the runway or at least at one point visible to the pilot while on final approach and prior to takeoff. If the airport is open for air carrier operations at night, the wind direction indicators, including the required supplemental indicators, must be lighted.
- (b) For airports serving any air carrier operation when there is no control tower operating, a segmented circle, a landing strip indicator and a traffic pattern indicator must be installed around a wind cone for each runway with a right-hand traffic pattern.
- (c) FAA Advisory Circulars contain methods and procedures for the installation, lighting, and maintenance of traffic and wind indicators that are acceptable to the Administrator.

§ 139.325 Airport emergency plan.

- (a) In a manner authorized by the Administrator, each certificate holder must develop and maintain an airport emergency plan designed to minimize the possibility and extent of personal injury and property damage on the airport in an emergency. The plan must—
 - (1) Include procedures for prompt response to all emergencies listed in paragraph (b) of this section, including a communications network;
 - (2) Contain sufficient detail to provide adequate guidance to each person who must implement these procedures; and
 - (3) To the extent practicable, provide for an emergency response for the largest air carrier aircraft in the Index group required under § 139.315.
- (b) The plan required by this section must contain instructions for response to—
 - (1) Aircraft incidents and accidents;
 - (2) Bomb incidents, including designation of parking areas for the aircraft involved;
 - (3) Structural fires;
 - (4) Fires at fuel farms or fuel storage areas;

- (5) Natural disaster;
 - (6) Hazardous materials/dangerous goods incidents;
 - (7) Sabotage, hijack incidents, and other unlawful interference with operations;
 - (8) Failure of power for movement area lighting; and
 - (9) Water rescue situations, as appropriate.
- (c) The plan required by this section must address or include—
- (1) To the extent practicable, provisions for medical services, including transportation and medical assistance for the maximum number of persons that can be carried on the largest air carrier aircraft that the airport reasonably can be expected to serve;
 - (2) The name, location, telephone number, and emergency capability of each hospital and other medical facility and the business address and telephone number of medical personnel on the airport or in the communities it serves who have agreed to provide medical assistance or transportation;
 - (3) The name, location, and telephone number of each rescue squad, ambulance service, military installation, and government agency on the airport or in the communities it serves that agrees to provide medical assistance or transportation;
 - (4) An inventory of surface vehicles and aircraft that the facilities, agencies, and personnel included in the plan under paragraphs (c)(2) and (3) of this section will provide to transport injured and deceased persons to locations on the airport and in the communities it serves;
 - (5) A list of each hangar or other building on the airport or in the communities it serves that will be used to accommodate uninjured, injured, and deceased persons;
 - (6) Plans for crowd control, including the name and location of each safety or security agency that agrees to provide assistance for the control of crowds in the event of an emergency on the airport; and
 - (7) Procedures for removing disabled aircraft, including, to the extent practical, the name, location, and telephone numbers of agencies with aircraft removal responsibilities or capabilities.
- (d) The plan required by this section must provide for—
- (1) The marshalling, transportation, and care of ambulatory injured and uninjured accident survivors;
 - (2) The removal of disabled aircraft;
 - (3) Emergency alarm or notification systems; and
 - (4) Coordination of airport and control tower functions relating to emergency actions, as appropriate.
- (e) The plan required by this section must contain procedures for notifying the facilities, agencies, and personnel who have responsibilities under the plan of the location of an aircraft accident, the number of persons involved in that accident, or any other information necessary to carry out their responsibilities, as soon as that information becomes available.
- (f) The plan required by this section must contain provisions, to the extent practicable, for the rescue of aircraft accident victims from significant bodies of water or marsh lands adjacent to the airport that are crossed by the approach and departure flight paths of air carriers. A body of water or marshland is significant if the area exceeds one-quarter square mile and cannot be traversed by conventional land

rescue vehicles. To the extent practicable, the plan must provide for rescue vehicles with a combined capacity for handling the maximum number of persons that can be carried on board the largest air carrier aircraft in the Index group required under § 139.315.

- (g) Each certificate holder must—
 - (1) Coordinate the plan with law enforcement agencies, rescue and firefighting agencies, medical personnel and organizations, the principal tenants at the airport, and all other persons who have responsibilities under the plan;
 - (2) To the extent practicable, provide for participation by all facilities, agencies, and personnel specified in paragraph (g)(1) of this section in the development of the plan;
 - (3) Ensure that all airport personnel having duties and responsibilities under the plan are familiar with their assignments and are properly trained; and
 - (4) At least once every 12 consecutive calendar months, review the plan with all of the parties with whom the plan is coordinated, as specified in paragraph (g)(1) of this section, to ensure that all parties know their responsibilities and that all of the information in the plan is current.
- (h) Each holder of a Class I Airport Operating Certificate must hold a full-scale airport emergency plan exercise at least once every 36 consecutive calendar months.
- (i) Each airport subject to applicable FAA and Transportation Security Administration security regulations must ensure that instructions for response to paragraphs (b)(2) and (b)(7) of this section in the airport emergency plan are consistent with its approved airport security program.
- (j) FAA Advisory Circulars contain methods and procedures for the development of an airport emergency plan that are acceptable to the Administrator.
- (k) The emergency plan required by this section must be submitted by each holder of a Class II, III, or IV Airport Operating Certificate no later than 24 consecutive calendar months after June 9, 2004.

§ 139.327 Self-inspection program.

- (a) In a manner authorized by the Administrator, each certificate holder must inspect the airport to assure compliance with this subpart according to the following schedule:
 - (1) Daily, except as otherwise required by the Airport Certification Manual;
 - (2) When required by any unusual condition, such as construction activities or meteorological conditions, that may affect safe air carrier operations; and
 - (3) Immediately after an accident or incident.
- (b) Each certificate holder must provide the following:
 - (1) Equipment for use in conducting safety inspections of the airport;
 - (2) Procedures, facilities, and equipment for reliable and rapid dissemination of information between the certificate holder's personnel and air carriers; and
 - (3) Procedures to ensure qualified personnel perform the inspections. Such procedures must ensure personnel are trained, as specified under § 139.303, and receive initial and recurrent instruction every 12 consecutive calendar months in at least the following areas:
 - (i) Airport familiarization, including airport signs, marking and lighting.

- (ii) Airport emergency plan.
 - (iii) Notice to Airmen (NOTAM) notification procedures.
 - (iv) Procedures for pedestrians and ground vehicles in movement areas and safety areas.
 - (v) Discrepancy reporting procedures; and
- (4) A reporting system to ensure prompt correction of unsafe airport conditions noted during the inspection, including wildlife strikes.
- (c) Each certificate holder must—
 - (1) Prepare, and maintain for at least 12 consecutive calendar months, a record of each inspection prescribed by this section, showing the conditions found and all corrective actions taken.
 - (2) Prepare records of all training given after June 9, 2004 to each individual in compliance with this section that includes, at a minimum, a description and date of training received. Such records must be maintained for 24 consecutive calendar months after completion of training.
- (d) FAA Advisory Circulars contain methods and procedures for the conduct of airport self-inspections that are acceptable to the Administrator.

§ 139.329 Pedestrians and ground vehicles.

In a manner authorized by the Administrator, each certificate holder must—

- (a) Limit access to movement areas and safety areas only to those pedestrians and ground vehicles necessary for airport operations;
- (b) Establish and implement procedures for the safe and orderly access to and operation in movement areas and safety areas by pedestrians and ground vehicles, including provisions identifying the consequences of noncompliance with the procedures by all persons;
- (c) When an air traffic control tower is in operation, ensure that each pedestrian and ground vehicle in movement areas or safety areas is controlled by one of the following:
 - (1) Two-way radio communications between each pedestrian or vehicle and the tower;
 - (2) An escort with two-way radio communications with the tower accompanying any pedestrian or vehicle without a radio; or
 - (3) Measures authorized by the Administrator for controlling pedestrians and vehicles, such as signs, signals, or guards, when it is not operationally practical to have two-way radio communications between the tower and the pedestrian, vehicle, or escort;
- (d) When an air traffic control tower is not in operation, or there is no air traffic control tower, provide adequate procedures to control pedestrians and ground vehicles in movement areas or safety areas through two-way radio communications or prearranged signs or signals;
- (e) Ensure that all persons are trained on procedures required under paragraph (b) of this section prior to the initial performance of such duties and at least once every 12 consecutive calendar months, including consequences of noncompliance, prior to moving on foot, or operating a ground vehicle, in movement areas or safety areas; and
- (f) Maintain the following records:

- (1) A description and date of training completed after June 9, 2004 by each individual in compliance with this section. A record for each individual must be maintained for 24 consecutive months after the termination of an individual's access to movement areas and safety areas.
- (2) A description and date of any accidents or incidents in the movement areas and safety areas involving air carrier aircraft, a ground vehicle or a pedestrian. Records of each accident or incident occurring after the June 9, 2004 must be maintained for 12 consecutive calendar months from the date of the accident or incident.

[Doc. No. FAA-2000-7479, 69 FR 6424, Feb. 10, 2004, as amended by Amdt. 139-27, 78 FR 3316, Jan. 16, 2013]

§ 139.331 Obstructions.

In a manner authorized by the Administrator, each certificate holder must ensure that each object in each area within its authority that has been determined by the FAA to be an obstruction is removed, marked, or lighted, unless determined to be unnecessary by an FAA aeronautical study. FAA Advisory Circulars contain methods and procedures for the lighting of obstructions that are acceptable to the Administrator.

§ 139.333 Protection of NAVAIDS.

In a manner authorized by the Administrator, each certificate holder must—

- (a) Prevent the construction of facilities on its airport that, as determined by the Administrator, would derogate the operation of an electronic or visual NAVAID and air traffic control facilities on the airport;
- (b) Protect—or if the owner is other than the certificate holder, assist in protecting—all NAVAIDS on its airport against vandalism and theft; and
- (c) Prevent, insofar as it is within the airport's authority, interruption of visual and electronic signals of NAVAIDS.

§ 139.335 Public protection.

- (a) In a manner authorized by the Administrator, each certificate holder must provide—
 - (1) Safeguards to prevent inadvertent entry to the movement area by unauthorized persons or vehicles; and
 - (2) Reasonable protection of persons and property from aircraft blast.
- (b) Fencing that meets the requirements of applicable FAA and Transportation Security Administration security regulations in areas subject to these regulations is acceptable for meeting the requirements of paragraph (a)(i) of this section.

§ 139.337 Wildlife hazard management.

- (a) In accordance with its Airport Certification Manual and the requirements of this section, each certificate holder must take immediate action to alleviate wildlife hazards whenever they are detected.
- (b) In a manner authorized by the Administrator, each certificate holder must ensure that a wildlife hazard assessment is conducted when any of the following events occurs on or near the airport:
 - (1) An air carrier aircraft experiences multiple wildlife strikes;

- (2) An air carrier aircraft experiences substantial damage from striking wildlife. As used in this paragraph, substantial damage means damage or structural failure incurred by an aircraft that adversely affects the structural strength, performance, or flight characteristics of the aircraft and that would normally require major repair or replacement of the affected component;
 - (3) An air carrier aircraft experiences an engine ingestion of wildlife; or
 - (4) Wildlife of a size, or in numbers, capable of causing an event described in paragraphs (b)(1), (b)(2), or (b)(3) of this section is observed to have access to any airport flight pattern or aircraft movement area.
- (c) The wildlife hazard assessment required in paragraph (b) of this section must be conducted by a wildlife damage management biologist who has professional training and/or experience in wildlife hazard management at airports or an individual working under direct supervision of such an individual. The wildlife hazard assessment must contain at least the following:
 - (1) An analysis of the events or circumstances that prompted the assessment.
 - (2) Identification of the wildlife species observed and their numbers, locations, local movements, and daily and seasonal occurrences.
 - (3) Identification and location of features on and near the airport that attract wildlife.
 - (4) A description of wildlife hazards to air carrier operations.
 - (5) Recommended actions for reducing identified wildlife hazards to air carrier operations.
- (d) The wildlife hazard assessment required under paragraph (b) of this section must be submitted to the Administrator for approval and determination of the need for a wildlife hazard management plan. In reaching this determination, the Administrator will consider—
 - (1) The wildlife hazard assessment;
 - (2) Actions recommended in the wildlife hazard assessment to reduce wildlife hazards;
 - (3) The aeronautical activity at the airport, including the frequency and size of air carrier aircraft;
 - (4) The views of the certificate holder;
 - (5) The views of the airport users; and
 - (6) Any other known factors relating to the wildlife hazard of which the Administrator is aware.
- (e) When the Administrator determines that a wildlife hazard management plan is needed, the certificate holder must formulate and implement a plan using the wildlife hazard assessment as a basis. The plan must—
 - (1) Provide measures to alleviate or eliminate wildlife hazards to air carrier operations;
 - (2) Be submitted to, and approved by, the Administrator prior to implementation; and
 - (3) As authorized by the Administrator, become a part of the Airport Certification Manual.
- (f) The plan must include at least the following:
 - (1) A list of the individuals having authority and responsibility for implementing each aspect of the plan.

- (2) A list prioritizing the following actions identified in the wildlife hazard assessment and target dates for their initiation and completion:
 - (i) Wildlife population management;
 - (ii) Habitat modification; and
 - (iii) Land use changes.
- (3) Requirements for and, where applicable, copies of local, State, and Federal wildlife control permits.
- (4) Identification of resources that the certificate holder will provide to implement the plan.
- (5) Procedures to be followed during air carrier operations that at a minimum includes—
 - (i) Designation of personnel responsible for implementing the procedures;
 - (ii) Provisions to conduct physical inspections of the aircraft movement areas and other areas critical to successfully manage known wildlife hazards before air carrier operations begin;
 - (iii) Wildlife hazard control measures; and
 - (iv) Ways to communicate effectively between personnel conducting wildlife control or observing wildlife hazards and the air traffic control tower.
- (6) Procedures to review and evaluate the wildlife hazard management plan every 12 consecutive months or following an event described in paragraphs (b)(1), (b)(2), and (b)(3) of this section, including:
 - (i) The plan's effectiveness in dealing with known wildlife hazards on and in the airport's vicinity and
 - (ii) Aspects of the wildlife hazards described in the wildlife hazard assessment that should be reevaluated.
- (7) A training program conducted by a qualified wildlife damage management biologist to provide airport personnel with the knowledge and skills needed to successfully carry out the wildlife hazard management plan required by paragraph (d) of this section.
- (g) FAA Advisory Circulars contain methods and procedures for wildlife hazard management at airports that are acceptable to the Administrator.

§ 139.339 Airport condition reporting.

In a manner authorized by the Administrator, each certificate holder must—

- (a) Provide for the collection and dissemination of airport condition information to air carriers.
- (b) In complying with paragraph (a) of this section, use the NOTAM system, as appropriate, and other systems and procedures authorized by the Administrator.
- (c) In complying with paragraph (a) of this section, provide information on the following airport conditions that may affect the safe operations of air carriers:
 - (1) Construction or maintenance activity on movement areas, safety areas, or loading ramps and parking areas.

- (2) Surface irregularities on movement areas, safety areas, or loading ramps and parking areas.
 - (3) Snow, ice, slush, or water on the movement area or loading ramps and parking areas.
 - (4) Snow piled or drifted on or near movement areas contrary to § 139.313.
 - (5) Objects on the movement area or safety areas contrary to § 139.309.
 - (6) Malfunction of any lighting system, holding position signs, or ILS critical area signs required by § 139.311.
 - (7) Unresolved wildlife hazards as identified in accordance with § 139.337.
 - (8) Nonavailability of any rescue and firefighting capability required in §§ 139.317 or 139.319.
 - (9) Any other condition as specified in the Airport Certification Manual or that may otherwise adversely affect the safe operations of air carriers.
- (d) Each certificate holder must prepare and keep, for at least 12 consecutive calendar months, a record of each dissemination of airport condition information to air carriers prescribed by this section.
- (e) FAA Advisory Circulars contain methods and procedures for using the NOTAM system and the dissemination of airport information that are acceptable to the Administrator.

§ 139.341 Identifying, marking, and lighting construction and other unserviceable areas.

- (a) In a manner authorized by the Administrator, each certificate holder must—
- (1) Mark and, if appropriate, light in a manner authorized by the Administrator—
 - (i) Each construction area and unserviceable area that is on or adjacent to any movement area or any other area of the airport on which air carrier aircraft may be operated;
 - (ii) Each item of construction equipment and each construction roadway, which may affect the safe movement of aircraft on the airport; and
 - (iii) Any area adjacent to a NAVAID that, if traversed, could cause derogation of the signal or the failure of the NAVAID; and
 - (2) Provide procedures, such as a review of all appropriate utility plans prior to construction, for avoiding damage to existing utilities, cables, wires, conduits, pipelines, or other underground facilities.
- (b) FAA Advisory Circulars contain methods and procedures for identifying and marking construction areas that are acceptable to the Administrator.

§ 139.343 Noncomplying conditions.

Unless otherwise authorized by the Administrator, whenever the requirements of subpart D of this part cannot be met to the extent that uncorrected unsafe conditions exist on the airport, the certificate holder must limit air carrier operations to those portions of the airport not rendered unsafe by those conditions.

Subpart E—Airport Safety Management System

Source: Docket No. FAA–2010–0997, 88 FR 11672, Feb. 23, 2023, unless otherwise noted.

§ 139.401 General requirements.

- (a) Each certificate holder or applicant for an Airport Operating Certificate meeting at least one of the following criteria must develop, implement, maintain, and adhere to an Airport Safety Management System pursuant to the requirements established in this subpart. If the certificate holder:
 - (1) Is classified as a large, medium, or small hub based on passenger data extracted from the Air Carrier Activity Information System;
 - (2) Has an average of 100,000 or more total annual operations, meaning the sum of all arrivals and departures, over the previous three calendar years; or
 - (3) Is classified as a port of entry, designated international airport, landing rights airport, or user fee airport.
- (b) The scope of an Airport Safety Management System must encompass aircraft operation in the movement area, aircraft operation in the non-movement area, and other airport operations addressed in this part.
- (c) The Airport Safety Management System should correspond in size, nature, and complexity to the operations, activities, hazards, and risks associated with the certificate holder's operations.
- (d) If a certificate holder qualifies exclusively under paragraph (a)(3) of this section and has no tenants that are required to comply with SMS requirements of any jurisdiction, the certificate holder is eligible for a waiver from the requirements of paragraph (a) of this section.
 - (1) To obtain the waiver, the certificate holder must submit a written request to the Regional Airports Division Manager justifying its request.
 - (2) If FAA grants a certificate holder's request for a waiver, the certificate holder must validate its waiver eligibility to the Regional Airports Division Manager every two years.
- (e) If an airport has a tenant required to maintain a SMS subject to the requirements of part 5 of this title, then the certificate holder may develop a data sharing and reporting plan to address the reporting and sharing of hazard and safety data with the tenant.
 - (1) Any data sharing and reporting plan must include, at a minimum:
 - (i) The types of information the certificate holder expects the tenant to share;
 - (ii) The timeliness of sharing relevant safety data and reports;
 - (iii) Processes for analyzing joint safety issues or hazards;
 - (iv) Other processes, procedures, and policies to aid the certificate holder's compliance with its obligations under the Airport Safety Management System; and
 - (v) Identification of the mechanisms through which the certificate holder will ensure compliance with the plan to achieve the full implementation of the requirements.
 - (2) With a data sharing and reporting plan, the requirement for the certificate holder to provide safety awareness orientation to the tenants or their employees under § 139.402(d)(1) is waived.
 - (3) The certificate holder remains the ultimate responsible party for compliance with its Airport Safety Management System.

- (f) Each certificate holder required to develop, implement, maintain, and adhere to an Airport Safety Management System under this subpart must describe its compliance with the requirements identified in § 139.402, either:
 - (1) Within a separate section of the certificate holder's Airport Certification Manual titled Airport Safety Management System; or
 - (2) Within a separate Airport Safety Management System Manual. If the certificate holder chooses to use a separate Airport Safety Management System Manual, the Airport Certification Manual must incorporate by reference the Airport Safety Management System Manual.
- (g) On an annual basis or upon FAA request, the certificate holder shall provide the FAA copies of any changes to the Airport Safety Management System Manual.
- (h) A certificate holder that starts implementation of an Airport Safety Management System but no longer qualifies under paragraph (a) of this section must continue to develop, implement, maintain, and adhere to its Airport Safety Management System for the longest of the following periods:
 - (1) Twenty-four consecutive calendar months after full implementation; or
 - (2) Twenty-four consecutive calendar months from the date it no longer qualifies under paragraph (a) of this section.

§ 139.402 Components of Airport Safety Management System.

An Airport Safety Management System must include:

- (a) **Safety Policy.** A Safety Policy that, at a minimum:
 - (1) Identifies the accountable executive;
 - (2) Establishes and maintains a safety policy statement signed by the accountable executive;
 - (3) Ensures the safety policy statement is available to all employees and tenants;
 - (4) Identifies and communicates the safety organizational structure;
 - (5) Describes management responsibility and accountability for safety issues;
 - (6) Establishes and maintains safety objectives; and
 - (7) Defines methods, processes, and organizational structure necessary to meet safety objectives.
- (b) **Safety Risk Management.** Safety Risk Management processes and procedures for identifying hazards and their associated risks within airport operations and for changes to those operations covered by this part that, at a minimum:
 - (1) Establish a system for identifying operational safety issues.
 - (2) Establish a systematic process to analyze hazards and their associated risks, which include:
 - (i) Describing the system;
 - (ii) Identifying hazards;
 - (iii) Analyzing the risk of identified hazards and/or analyzing proposed mitigations;
 - (iv) Assessing the level of risk associated with identified hazards; and

- (v) Mitigating the risks of identified hazards, when appropriate.
- (3) Establish and maintain records that document the certificate holder's Safety Risk Management processes.
 - (i) The records shall provide a means for airport management's acceptance of responsibility for assessed risks and mitigations.
 - (ii) Records associated with the certificate holder's Safety Risk Management processes must be retained for the longer of:
 - (A) Thirty-six consecutive calendar months after the risk analysis of identified hazards under paragraph (b)(2) of this section has been completed; or
 - (B) Twelve consecutive calendar months after mitigations required under paragraph (b)(2)(v) of this section have been completed.
- (c) **Safety assurance.** Safety assurance processes and procedures to ensure mitigations developed through the certificate holder's Safety Risk Management processes and procedures are adequate, and the Airport's Safety Management System is functioning effectively. Those processes and procedures must, at a minimum:
 - (1) Provide a means for monitoring safety performance including a means for ensuring that safety objectives identified under paragraph (a)(6) of this section are being met.
 - (2) Establish and maintain a safety reporting system that provides a means for reporter confidentiality.
 - (3) Report pertinent safety information and data on a regular basis to the accountable executive. Reportable data includes:
 - (i) Compliance with the requirements under this subpart and subpart D of this part;
 - (ii) Performance of safety objectives established under paragraph (a)(6) of this section;
 - (iii) Safety critical information distributed in accordance with paragraph (d)(5)(ii) of this section;
 - (iv) Status of ongoing mitigations required under the Airport's Safety Risk Management processes as described under paragraph (b)(2)(v) of this section; and
 - (v) Status of a certificate holder's schedule for implementing the Airport Safety Management System as described under § 139.403.
- (d) **Safety Promotion.** Safety Promotion processes and procedures to foster an airport operating environment that encourages safety. Those processes and procedures must, at a minimum:
 - (1) Provide all persons authorized to access the airport areas regulated under this part with a safety awareness orientation, which includes hazard identification and reporting. The safety awareness orientation materials must be readily available and must be reviewed and updated every twenty-four calendar months or sooner if necessary.
 - (2) Maintain a record of all safety awareness orientation materials made available under paragraph (d)(1) of this section including any revisions and means of distribution. Such records must be retained for twenty-four consecutive calendar months after the materials are made available.

- (3) Provide safety training on those requirements of SMS and its implementation to each employee with responsibilities under the certificate holder's SMS that is appropriate to the individual's role. This training must be completed at least every twenty-four months.
- (4) Maintain a record of all training by each individual under paragraph (d)(3) of this section that includes, at a minimum, a description and date of training received. Such records must be retained for twenty-four consecutive calendar months after completion of training.
- (5) Develop and maintain formal means for communicating important safety information that, at a minimum:
 - (i) Ensures all persons authorized to access the airport areas regulated under this part are aware of the SMS and their safety roles and responsibilities;
 - (ii) Conveys critical safety information;
 - (iii) Provides feedback to individuals using the airport's safety reporting system required under paragraph (c)(2) of this section; and
 - (iv) Disseminates safety lessons learned to relevant airport employees or other stakeholders.
- (6) Maintain records of communications required under this section for 12 consecutive calendar months.

§ 139.403 Airport Safety Management System implementation.

- (a) Each certificate holder required to develop, implement, maintain, and adhere to an Airport Safety Management System under this subpart must submit an Implementation Plan to the FAA for approval according to the following schedule:
 - (1) For certificate holders identified under § 139.401(a)(1), on or before April 24, 2024;
 - (2) For certificate holders identified under § 139.401(a)(2), on or before October 24, 2024;
 - (3) For certificate holders identified under § 139.401(a)(3), on or before April 24, 2025.
 - (4) For a certificate holder that qualifies under § 139.401(a) after April 24, 2023, on or before 18 months after the certificate holder receives notification from the Regional Airports Division Manager of the change in its status.
- (b) An Implementation Plan must provide:
 - (1) A detailed proposal on how the certificate holder will meet the requirements prescribed in this subpart.
 - (2) A schedule for implementing SMS components and elements prescribed in § 139.402. The schedule must include timelines for the following requirements:
 - (i) Developing the safety policy statement as prescribed in § 139.402(a)(2) and when it will be made available to all employees and tenants as prescribed in § 139.402(a)(3);
 - (ii) Identifying and communicating the safety organizational structure as prescribed in § 139.402(a)(4);
 - (iii) Establishing a system for identifying operational safety issues as prescribed in § 139.402(b)(1);
 - (iv) Establishing a safety reporting system as prescribed in § 139.402(c)(2);

- (v) Developing, providing, and maintaining safety awareness orientation materials as prescribed in § 139.402(d)(1);
 - (vi) Providing SMS-specific training to employees with responsibilities under the certificate holder's SMS as prescribed in § 139.402(d)(3); and
 - (vii) Developing, implementing, and maintaining formal means for communicating important safety information as prescribed in § 139.402(d)(5).
- (3) A description of any existing programs, policies, or procedures that the certificate holder intends to use to meet the requirements of this subpart.
- (c) Each certificate holder required to develop, implement, maintain, and adhere to an Airport Safety Management System under this subpart must submit its amended Airport Certification Manual and Airport Safety Management System Manual, if applicable, to the FAA in accordance with its Implementation Plan but not later than 12 months after receiving FAA approval of the certificate holder's Implementation Plan.
- (d) A certificate holder that qualifies under § 139.401(a) must fully implement its Airport Safety Management System no later than 36 months after the approval of its Implementation Plan.